

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS
STATE OF CALIFORNIA**

In the Matter of the Dismissal of:

ENRIQUE TAN ORTIZ,

a Permanent Certificated Employee,

Respondent.

OAH No. 2025040934

DECISION

Cindy F. Forman, Administrative Law Judge, Office of Administrative Hearings (OAH), State of California, heard this matter by videoconference on June 2, 2025, pursuant to Education Code section 44944.1. (All further statutory references are to the Education Code unless otherwise stated.)

Brian Davenport, Assistant General Counsel II, represented complainant Los Angeles Unified School District (District or LAUSD).

Jason Wojciechowski, Esq., Bush Gottlieb, represented respondent Enrique Tan Ortiz, who was present during the hearing.

The Administrative Law Judge heard testimony and received documentary evidence. The record closed and the matter was submitted for decision on June 2, 2025.

RESPONDENT’S DEMURRER OR MOTION TO STRIKE

On April 29, 2025, respondent filed a demurrer or motion to strike (demurrer) contending the allegations in the Accusation in this matter, if assumed to be true, did not state a claim of egregious conduct, as defined by section 44932, subdivision (a)(1), and that the allegations therefore are outside the scope of the four-year statute of limitations contained in section 44944.1, subdivision (d)(3). The District filed an opposition to the demurrer on May 23, 2025, and a videoconference hearing was held on May 30, 2025.

On June 2, 2025, at the outset of the hearing, the Administrative Law Judge denied the demurrer, finding that a full hearing was necessary to illuminate certain factual issues relating to the nature of the alleged inappropriate contact. The Administrative Law Judge explained the basis of her ruling on the record.

SUMMARY

Respondent taught middle school at LAUSD for more than 20 years. The District alleges respondent inappropriately touched a student in three separate interactions occurring more than ten years ago. The District contends respondent’s conduct constituted “grooming” and violated Penal Code section 646.7, which prohibits the annoyance or molestation of a child. The District further contends such conduct is egregious as defined by Education Code sections 44932, subdivision (a)(1), and 44939.1, and therefore warrants respondent’s dismissal.

The District failed to prove by a preponderance of the evidence that respondent groomed or inappropriately touched any student. The alleged misconduct therefore

does not constitute a violation of Penal Code section 646.7, subdivision (a), or any other provision of the Penal Code or Education Code defined as egregious conduct under Education Code section 44932, subdivision (a)(1). Accordingly, the District has demonstrated no grounds to dismiss respondent from his employment. Respondent therefore shall remain employed with the District.

FACTUAL FINDINGS

Jurisdictional Matters

1. The District commenced its dismissal proceedings against respondent on March 7, 2025, when Kristen K. Murphy, Ed.D., Associate Superintendent Talent & Labor Relations, in her official capacity on behalf of the District, executed the Statement of Charges against respondent.

2. On April 9, 2025, the District informed respondent that a Statement of Charges had been filed with the District Board of Education and that respondent was suspended without pay.

3. Respondent filed a Notice of Defense and Request for Hearing on April 11, 2025.

4. On April 21, 2025, Ms. Murphy, acting in her official capacity on behalf of the District, executed the Accusation against respondent. The Accusation seeks respondent's dismissal based on egregious conduct pursuant to sections 44932, subdivision (a)(1), and 44939.1.

5. All jurisdictional requirements have been met for this hearing to proceed.

General Background

6. Respondent began his teaching career in 2003, immediately after he graduated from college. LAUSD hired respondent in 2005 and assigned him to teach at Stevenson Middle School (Stevenson). Respondent taught continuously at Stevenson from 2005 until he was reassigned on March 28, 2023, in response to the complaint underlying the Statement of Charges and the Accusation.

7. At Stevenson, respondent taught history and AVID (Advanced Via Individual Determination) college preparatory courses. During his tenure, respondent held many leadership positions, including Department Chair, Team Leader, and Teacher Support Provider. Respondent also served as a mentor for new teachers.

8. Respondent consistently received complimentary reviews of his teaching capabilities from the District. On May 15, 2014, the District's employment evaluation found respondent "meets standard performance." (Exhibit 9, p. A156; see also Exhibit F.) The District observer rated respondent as "effective" (the highest rating) in all but a few of the rating categories, and in those few categories, the observer found respondent to be "developing." The observer did not find respondent to be "ineffective" in any category. Likewise, in 2023, the District rated respondent's planning and preparation, classroom environment, instruction delivery, and professional responsibility as "developing practice" or "effective." (Exhibit F.)

9. Respondent was respected by both his colleagues and his students. Three teachers who worked with respondent at Stevenson testified at hearing, and they uniformly described respondent as a professional leader and an excellent educator. The teachers, two of whom had children or family members who were in respondent's classes, also testified that respondent had a good reputation among his

students, who considered him a trustworthy and dependable teacher. The three teachers were aware of the allegations against respondent, and each expressed their shock and disbelief. None had ever heard from any student that respondent acted inappropriately.

10. During his tenure at Stevenson, respondent was never accused, charged with, or found guilty of any sexually inappropriate behavior. The complaint at issue in this proceeding is the only instance respondent has been charged with sexually inappropriate conduct.

The Complaint

11. J.L. is currently employed as a Special Education Teaching Assistant at Garfield High School (Garfield). (J.L. is identified by her initials to protect her privacy.) While working in a Garfield classroom in March 2023, J.L. heard Garfield Assistant Principal Jesus Lopez (AP Lopez) review certain types of conduct considered to be sexual abuse. She testified the review raised “red flags” for her, and led her to disclose to AP Lopez that respondent inappropriately touched her in a sexual manner when she was a middle school student at Stevenson between 2013 and 2015.

12. On March 27, 2023, AP Lopez filed an incident report (complaint) with the District disclosing his conversation with J.L. regarding respondent’s alleged misconduct. After conducting an investigation of the complaint, the District suspended respondent and ultimately filed the Accusation seeking his dismissal.

13. The District also immediately alerted the Los Angeles Police Department (LAPD) to AP Lopez’s complaint. The LAPD declined to initiate a criminal investigation after interviewing J.L. No criminal charges were brought against respondent based on the complaint.

The District's Case

14. J.L. was a student in respondent's AVID class at Stevenson between 2013 and 2015. At hearing, J.L. testified about two separate instances during the 2014-2015 school year in which respondent allegedly touched her hair, back, and thigh for sexual purposes. J.L. also complained respondent tickled the palm of her hand as a sexual gesture in a rehearsal for her eighth-grade culmination ceremony. The first time J.L. complained of respondent's alleged conduct was in her conversation with AP Lopez in March 2023.

15. The District's case is based solely on J.L.'s testimony. The District did not offer any testimony or other evidence corroborating J.L.'s account. The District does not contend respondent acted inappropriately with any other student.

FIRST INCIDENT

16. According to J.L., the first incident involving respondent occurred in the fall of the 2014–2015 school year. J.L. testified she asked respondent during class if he could help her fix her frozen iPod, and respondent told her he could do so after school. J.L. then went to respondent's classroom after school ended. She sat in a chair next to respondent, who was leaning out from his desk. J.L. testified respondent attempted to fix the iPod, but he was unsuccessful. According to J.L., after respondent told her he would have to erase the iPod's contents, respondent leaned over and placed his hand on her thigh. J.L. testified respondent's touching began with a rub and then ended with a pat on the top of her mid-thigh. Because her thighs were small, respondent's hand covered the top and sides of her thigh. Respondent then took his hand away, erased the iPod, and J.L. left the classroom. J.L. estimated the entire interaction lasted no more than two to three minutes. J.L. reported she and

respondent were alone in the classroom, and she did not recollect whether the door was open or closed. J.L. denied that respondent made any sexual statements during their interaction.

SECOND INCIDENT

17. According to J.L., the second incident involving respondent occurred several months after the first incident. At the time, J.L. suffered from migraines and insomnia. During respondent's class, she told respondent of her insomnia. Respondent asked if she wanted to rest in the adjoining empty classroom. J.L. agreed and went to the classroom, where she fell asleep while sitting in a chair with her head down on the desk. No one else was present in the classroom. J.L. testified she was awoken when respondent touched her "for a few seconds" (J.L.'s words). J.L. explained that respondent "caressed" her hair and made a back and forth motion with his hand on her back. When J.L. awoke, respondent asked her how she was feeling and whether she wanted to go to the nurse. When J.L. indicated she did not need any assistance, respondent left the classroom. J.L. denied that respondent made any sexual statements during this interaction.

THIRD INCIDENT

18. The third incident involving respondent occurred the day before culmination at the end of the 2014-2015 school year, several months after the second incident. According to J.L., the students were rehearsing for culmination and learning to perform a proper handshake. J.L. was assigned to a line where the students would shake respondent's hand. J.L. testified that when she shook respondent's hand, respondent tickled her palm in a "quick motion" with his middle finger. J.L. understood the palm tickle to be a sexual gesture. She testified that "everyone knew" it referred to

fingering a vagina. J.L. further testified that when she pulled her hand away, respondent chuckled and laughed. J.L. did not know why respondent laughed. According to J.L., she and respondent did not exchange any words during the handshake. J.L. did not have any contact with respondent after the incident.

19. J.L. did not interpret the first and second incidents as sexual until the third "palm tickle" incident. J.L. testified she felt "disgusted" and "very confused" by respondent's palm tickle, and the incident caused her to reassess her previous interactions with respondent.

20. J.L. did not report any of the incidents to her parents or the District at the time of the incidents or in the more than 10 years that followed. J.L. testified she only realized the import of respondent's actions after receiving training as part of her job as a special education aide at a District high school.

21. J.L. signed an affidavit on March 13, 2024, describing respondent's inappropriate conduct. (Exhibit D.) Her testimony was generally consistent with the affidavit. However, in the affidavit, J.L. stated during the first incident, respondent patted her thigh after he finished resetting her iPod, not before. J.L.'s affidavit makes no mention of respondent rubbing her thigh during this time. J.L.'s recounting of the second incident in her affidavit also differed from her testimony. In the affidavit, J.L. states that during the second incident respondent placed his hand on her thigh after waking her up, and she then instantly pulled away. J.L.'s testimony regarding the second incident makes no mention of respondent touching her thigh.

22. J.L. did not testify to any other instances of improper touching by respondent. The District did not offer any evidence to substantiate J.L.'s assertion that it was common knowledge that palm fingering was a sexual gesture. The District also

offered no evidence to support the third charge in the Accusation, i.e., that respondent touched J.L.'s leg, patted her on her knee, and rubbed her back on a separate fourth occasion (Exhibit 6, p. A107); J.L. only testified to three incidents involving respondent.

Respondent's Evidence

23. Respondent did not have any recollection of the incidents J.L. described. He denied propositioning any student for sexual acts. He denied taking any action that could be mistaken or perceived to be a proposition for sexual acts. He denied rubbing any student's inner thigh. He denied grooming J.L.

24. Respondent acknowledged he may have touched a student's hair either as a joke or to remove a bug or a foreign object. Respondent also acknowledged he may have tapped a student on the shoulder. Respondent acknowledged there was an empty classroom next to his classroom. Although he did not recall allowing any students to nap in the classroom, he acknowledged he might have done so. His testimony was consistent with the statements he made in his *Skelly* conference as summarized in an October 1, 2024 memo prepared by Dr. Jose Morales, Principal of Stevenson.

25. Respondent did not recall tickling J.L.'s palm, and he did not believe that was something he would do. Respondent recalled telling his students that when he was in middle school, the boys would tickle girls' hands with their middle fingers. He testified that he told the students that one of his friends was caught by the principal doing so, not because of its sexual connotations, but because the female student he tickled screamed. Respondent believed J.L. was one of his students when he shared this story with his students. However, respondent denied knowing the gesture had

sexual connotations. Respondent credibly testified he only became aware recently of the sexual connotations associated with palm tickling.

Credibility Analysis

26. Proceedings involving allegations of sexual misconduct are frequently “he said, she said” disputes. There are no eyewitnesses other than the parties themselves. The credibility of the accused and accuser is therefore critical to any factual determination of whether sexual misconduct occurred. (See e.g., *Doe v. Alee* (2019) 30 Cal.App.5th 1036, 1062–1066, disapproved of on other grounds [surveying a growing body of law recognizing, in hearings to exclude students from universities based on sexual misconduct allegations, resolution of conflicting accounts turns on witness credibility].)

27. Evidence Code section 780 provides some guidance in assessing a witness’s credibility. Under section 780, witness credibility can be evaluated based on the following factors: the demeanor and manner of the witness while testifying, the character of the testimony, the capacity to perceive at the time the events occurred, the character of the witness for honesty, the existence of bias or other motive, other statements of the witness which are consistent or inconsistent with the testimony, the existence or absence of any fact to which the witness testified, the attitude of the witness toward the proceeding in which the testimony has been given, and admissions of untruthfulness at the proceedings.

28. Fact finders have broad discretion in determining whether evidence is credible. They are permitted to “accept part of the testimony of a witness and reject another part even though the latter contradicts the part accepted” (*Stevens v. Parke, Davis & Co.* (1973) 9 Cal.3d 51, 67); to “reject part of the testimony of a witness,

though not directly contradicted, and combine the accepted portions with bits of testimony or inferences from the testimony of other witnesses thus weaving a cloth of truth out of selected material" (*id.*, at pp. 67-68, quoting from *Nevarov v. Caldwell* (1958) 161 Cal.App.2d 762, 777); and even to reject uncontradicted testimony. (*Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 890). Discrepancies in a witness's testimony, or between a witness's testimony and that of others, do not necessarily mean the testimony should be discredited. (*Wilson v. State Personnel Bd.* (1976) 58 Cal.App.3d 865, 879.) A fact finder also may disbelieve any or all testimony of an impeached witness. (*Wallace v. Pacific Elec. Ry. Co.* (1930) 105 Cal.App. 664, 671.)

29. Applying the foregoing credibility factors, both J.L. and respondent exhibited equally respectful and confident demeanors. J.L. provided a detailed and complete account of what she recalled occurred that was generally consistent with her affidavit. J.L. also had no motive to lie.

30. However, more than 10 years have passed since the complained-about interactions. Memories are not fixed; they are affected by subsequent events, relationships, and changing perceptions. It is impossible to determine the effect of these influences on J.L.'s recollection of her interactions with respondent over the 10 years that have elapsed. J.L. prepared no contemporaneous writings of what occurred and made no formal complaint. Her testimony was also inconsistent in part with her affidavit.

31. While respondent's denials of J.L.'s claims were self-serving, nothing in the record suggests the denials are untruthful. Respondent's credibility was bolstered by the testimony of his colleagues, who uniformly described him as a trustworthy individual and a respected educator, and the absence of any other claims of sexual impropriety during his 20-year teaching career. Additionally, respondent's failure to

recollect events more than ten years ago is understandable. It is also reasonable that respondent was unaware of the sexual connotations connected with palm tickling, despite J.L.'s bald assertion that such connotations were common knowledge.

32. Considering the passage of time, the absence of a contemporaneous complaint or any corroborating evidence, and the evidence supporting respondent's denials, the District did not prove that J.L.'s account of inappropriate touching in the three interactions she described was more credible than respondent's denials.

Ultimate Factual Findings

33. The District failed to prove respondent inappropriately touched J.L. between 2013 and 2015. The District's only evidence of respondent's inappropriate behavior was J.L.'s testimony, and that testimony was not more credible than respondent's denials.

34. There is insufficient evidence to establish respondent groomed J.L. The District offered no expert evidence to demonstrate any grooming occurred. Even if J.L.'s testimony of respondent's touching is deemed credible, the three incidents, whether considered separately or together, do not support the District's claim. The District presented no evidence respondent personally reached out to J.L. via social media or otherwise or that he planned the interactions with respondent. Rather, the evidence establishes J.L. initiated all the alleged incidents involving respondent and the interactions were fortuitous. No evidence was presented that respondent ever contacted J.L. outside of school, or that he had any communication with her since the day before culmination, more than 10 years ago. Nor was there any evidence respondent ever gave J.L. gifts, flattered her, or flirted with her. There was also no evidence that respondent made J.L. feel special or shared secrets with her. The three

alleged incidents where respondent may have incidentally touched J.L. do not constitute grooming.

LEGAL CONCLUSIONS

1. The Accusation in this case is based solely on charges of egregious misconduct. This matter is governed by sections 44932, subdivision (a)(1), 44934.1, and 44944.1.

2. A hearing based solely on allegations of egregious conduct is to be initiated and conducted, and a decision made, in accordance with Chapter 5 (commencing with Section 11500) of Part 1 of Division 3 of Title 2 of the Government Code, by an administrative law judge. The administrative law judge conducting the hearing has all the powers granted to an agency under Government Code sections 11500 through 11529. (§ 44944.1, subd. (c).)

3. The District has the burden of proof in this matter, and the standard of proof is preponderance of the evidence. (*Gardner v. Commission on Professional Competence* (1985) 164 Cal.App.3d 1035, 1038–1039.) A preponderance of the evidence is when it has more convincing force than that opposed to it. (*People ex rel. Brown v. Tri-Union Seafoods, LLC* (2009) 171 Cal.App.4th 1549, 1567.)

4. Section 44932, subdivision (a)(1), defines egregious misconduct as “immoral conduct that is the basis for an offense described in Section 44010 or 44011 of this code, or in Sections 11165.2 to 11165.6, inclusive, of the Penal Code.” Only in cases of egregious conduct can actions taken by a teacher more than four years before the filing of the notice of dismissal be considered in evaluating the propriety of the dismissal. (§ 44944.1, sub. (d)(3).)

5. The District contends respondent's conduct violated Penal Code section 646.7, subdivision (a)(1), which is included as a sexual offense under Education Code section 44010. Penal Code section 647.6, subdivision (a)(1), states: "Every person who annoys or molests a child under 18 years of age shall be punished by a fine not exceeding five thousand dollars (\$5,000), by imprisonment in a county jail not exceeding one year, or by both the fine and the punishment."

6. The Court of Appeal, in *In re D.G.* (2012) 208 Cal.App.4th 1562, 1571, explained the meaning of Penal Code section 647.6, subdivision (a)(1), as follows:

The words "annoy" and "molest" are synonymous and "refer to conduct designed 'to disturb or irritate, esp[ecially] by continued or repeated acts' or 'to offend' [citation]; and as used in this statute, they ordinarily relate to 'offenses against children, [with] a connotation of abnormal sexual motivation on the part of the offender.' [Citation.] Ordinarily, the annoyance or molestation which is forbidden is 'not concerned with the state of mind of the child' but it is 'the objectionable acts of the defendant which constitute the offense,' and if his conduct is 'so lewd or obscene that the normal person would unhesitatingly be irritated by it, such conduct would "annoy or molest" within the purview of' the statute. [Citation.]" (*People v. Carskaddon* (1957) 49 Cal.2d 423, 426, 318 P.2d 4.) The primary purpose of section 647.6 "is the 'protection of children from interference by sexual offenders....' [Citations.]" (*Id.* at p. 425, 318 P.2d.) "The deciding factor for purposes of a Penal Code 647.6 charge

is that the defendant has engaged in offensive or annoying sexually motivated conduct which invades a child's privacy and security, conduct which the government has a substantial interest in preventing. . . ." (*People v. Kongs* (1994) 30 Cal.App.4th 1741, 1752, 37 Cal.Rptr.2d 327.)

"[T]here can be no normal sexual interest in any child and it is the sexual interest in the child that is the focus of the statute's intent." (*People v. Shaw* (2009) 177 Cal.App.4th 92, 103, 99 Cal.Rptr.3d 112.)

7. The District did not prove by a preponderance of evidence that respondent violated Penal Code section 647.6, subdivision (a)(1), or committed any egregious conduct as defined by Education Code section 44932, subdivision (a)(1). The District did not establish that respondent groomed J.L. or touched J.L. as described in the four charges in the Accusation. (Factual Findings 6–34.) The evidence was insufficient to support J.L.'s account of her interactions with respondent. Even if J.L.'s account of respondent's touching was accurate, the incidentally tapping or squeezing a person's thigh, waking someone up by touching their hair and moving their hands across the person's back, or tickling a palm are not acts "so lewd or obscene that a normal person would be unhesitatingly irritated by them," as required by Penal Code section 647.6.

8. Cause therefore does not exist to dismiss respondent from employment with the District based on egregious misconduct pursuant to sections 44932, subdivision (a)(1), 44934.1, and 44944.1.

ORDER

The Accusation against respondent Enrique Tan Ortiz is hereby dismissed. Respondent shall remain employed with the Los Angeles Unified School District. He shall not be dismissed or suspended.

DATE: 06/26/2025

A handwritten signature in black ink, appearing to read 'Cindy F. Forman', with a stylized, cursive script.

CINDY F. FORMAN

Administrative Law Judge

Office of Administrative Hearings